

Tentative Rulings for Department 502

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Tentative Ruling

Re: **Ramirez v. Creative Alternatives School et al.**
Superior Court Case No. 25CECG05129

Hearing Date: August 5, 2026 (Dept. 502)

Motion: Defendants' Demurrer to the First Amended Complaint and Defendants' Motion to Strike

Tentative Ruling:

To continue the demurrer and motion to strike to Wednesday, September 23, 2026 at 3:30 p.m. in Department 502. Plaintiff S.A. is a minor and must have counsel in this matter. The motions are continued in order to give the minor an opportunity to obtain counsel. Counsel may file an amended complaint no later than September 9, 2026.

The parties may file briefing addressing whether the court should strike the First Amended Complaint in its entirety should plaintiff S.A. fail to obtain counsel. Any briefing on this issue is to be filed and served no later than September 9, 2026 and shall not exceed 7 pages.

Explanation:

Meriah Ramirez has filed a complaint in propria persona on behalf of herself and the minor, S.A. While the Court did sign orders appointing her as the Guardian Ad Litem for the minor on December 4, 2025, a non-attorney cannot act in propria persona to represent minors, even where that person has been appointed as their Guardian Ad Litem. (Bus. & Prof. Code, § 6125; *J.W. v. Superior Court* (1993) 17 Cal.App.4th 958, 965-968.) As such, while Meriah Ramirez may represent herself, counsel must be obtained for the minor child.

The court continues the instant motions a second time in order to allow minor plaintiff S.A. an opportunity obtain counsel. In the event counsel is obtained, counsel may file an amended complaint. As there is no cause of action for plaintiff Meriah Ramirez, the court intends to strike the First Amended Complaint in its entirety should the minor, S.A., fail to retain counsel.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-4-26
(Judge's initials) (Date)